

		a confidential relationship and a subsequent repudiation of an oral promise to hold the property in trust. (See <i>Orella v. Johnson</i> (1952) 38 Cal.2d 693, 696.) Plaintiffs do not allege any conveyance occurred. <u>Third Cause of Action - Conversion</u> Plaintiffs adequately plead a conversion claim against Defendant Park. Plaintiffs allege their ownership of specific sums of money and personal property. (FAC, ¶¶ 16, 39.) Defendants Park and Kim wrongfully exercised control over the money and property by taking them. (FAC, ¶¶ 18, 40.) Plaintiffs also allege damages. (FAC, ¶ 41.) Defendants are ORDERED to file an answer within 10 days. Defendants to give notice.
8	Grigsby vs. Steele Canyon Golf Course Corp. 30-2024-01435496-CU-PO-CJC	Demurrer to Third Amended Complaint The Demurrer to Plaintiff's Third Amended Complaint (TAC) by Defendants Steele Canyon Golf Club Corporation d.b.a. Dove Canyon Golf Club and Pacific Golf Management; SJS Tomorrow, LLC; SJD, LLC; Dove Canyon Golf Club, LLC; Lawrence Taylor; Colin Radchenko; Chloe Kim; John Glasoe; and Gabe Ramos is SUSTAINED without leave to amend in part and OVERRULED in part as set out below. In opposition, Plaintiff states the following parties will be dismissed without prejudice: Dove Canyon Golf Club, LLC will be dismissed without prejudice from all causes of action except the fifth cause of action for premises liability; Lawrence Taylor and Colin Radchenko will be dismissed without prejudice. The TAC is dismissed as to Lawrence Taylor and Colin Radchenko. The remaining Defendants demur to all eight causes of action in the TAC. <u>Procedural History:</u> The Court previously sustained Defendants' demurrers to the first and second amended complaints, which asserted causes of action arising from Plaintiff's workplace injuries, on grounds including workers compensation exclusivity. (See 2/13/26 and 6/16/25 Minute Orders.) The 2/13/26 order sustained with leave to amend stating, "this will likely be plaintiff's last opportunity to amend."

		Defendants assert Plaintiff's common law claims are precluded by the workers compensation exclusivity doctrine, and Plaintiff's statutory claims fail to state sufficient facts. Plaintiff filed an untimely opposition and the Court continued the hearing to allow Defendants to reply. The Court exercises its discretion to consider the untimely opposition. <u>Workers Compensation Exclusivity:</u> Defendants contend Plaintiff's common law claims for premises liability (fifth cause of action), intentional infliction of emotional distress (sixth cause of action), wrongful termination – constructive discharge (seventh cause of action), and negligence (eighth cause of action) are barred by the workers compensation exclusivity doctrine. "Physical and emotional injuries sustained in the course of employment are preempted by the workers' compensation scheme and generally will not support an independent cause of action. Emotional injuries caused by workplace discipline, including termination, fall within this rule." (<i>Yau v. Santa Margarita Ford, Inc.</i> (2014) 229 Cal.App.4th 144, 161 [cleaned up]; see Lab. Code, § 3600 et seq.) Plaintiff asserts the common law claims allege conduct that was so outrageous it fell outside the compensation bargain. Workers compensation exclusivity bars Plaintiff's claims for negligence, premises liability, and intentional infliction of emotional distress, which all arise from alleged injuries sustained by Plaintiff during the course of performing his work duties. However, the claim for wrongful termination is based on Plaintiff resigning after being "subjected to working conditions that violated public policy." (TAC, ¶ 196.) At the pleading stage, the Court cannot say this claim arises solely from physical/emotional injuries sustained in the course of employment, so the exclusivity doctrine does not bar the wrongful termination claim. Therefore, the demurrer is SUSTAINED without leave to amend as to the fifth, sixth, and eighth causes of action. <u>Failure to Plead Facts Supporting Wrongful Termination – Constructive Discharge:</u>
--	--	---

	Defendants contend this claim is uncertain and ambiguous including failure to specify the public policy which was violated by the alleged working conditions which caused him to resign. At this stage, the cause of action is sufficiently pled and Defendants may conduct discovery regarding the details of Plaintiff's allegations. The demurrer is OVERRULED as to the seventh cause of action. <u>Failure to Plead Facts Supporting Government Code § 12940 Claim:</u> Plaintiff states he will dismiss this cause of action without prejudice. The first cause of action is dismissed. <u>Failure to Plead Facts Supporting Labor Code §§ 1102.5, 98.6, and 6310 Claims:</u> Defendants argue Plaintiff fails to allege facts supporting these Labor Code claims arising from alleged retaliation. Plaintiff asserts Defendants waived their right to demur to these claims, which were alleged in the SAC but not objected to in Defendants' demurrer to the SAC. Defendant responds Plaintiff's Labor Code sections 98.6 and 1102.5 claims were combined in a single cause of action in the SAC but distinct in the TAC, therefore they are not identical. Defendant also contends the Labor Code section 6310 claim was revised with regard to the supporting facts alleged. The Labor Code claims in the SAC are substantially identical to the Labor Code claims in the TAC. Defendants have waived their right to demur to these claims. (Code Civ. Proc., § 430.41, subd. (b).) Therefore, the demurrer is OVERRULED as to the second, third, and fourth causes of action. The remaining defendants are ORDERED to file an answer within 5 days. Plaintiff's motion for relief from untimely submission of opposition to demurrer scheduled for 10/9/2026 is VACATED. Clerk to give notice.
--	--